1.

CASE #	CASE NAME	HEARING NAME
CVRI2104849	COUNTY OF RIVERSIDE vs LIMA	MOTION TO APPOINT RECEIVER

Tentative Ruling:

The Court denies the motion to appoint receiver as there is no indication that the property is still in non-compliance of the judgment.

See #2 below for reasoning.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2104849	COUNTY OF RIVERSIDE vs LIMA	MOTION FOR ENFORCEMENT OF STIPULATED JUDGMENT AND FOR COSTS, ATTORNEYS' FEES, AND CIVIL PENALTIES COUNTY OF RIVERSIDE

Tentative Ruling:

Summary of Ruling:

The Court grants the motion to enforce judgment.

The Court denies the motion to appoint receiver as there is no indication that the property is still in non-compliance of the judgment.

Factual / Procedural Context:

On October 21, 2021, Plaintiff County of Riverside filed this action for nuisance per se arising out of the unlawful cultivation of cannabis in violation of Riverside County Ordinance No. 348. Defendant Sonia Magali Lima owns real property in Perris, which is in the unincorporated area of Riverside County, and located in the Rural Residential area. Ordinance no. 348 prohibits commercial cannabis activity without a conditional use permit (CUP) and a state cannabis license. Defendant does not have either a CUP or a state license and is engaging in cannabis cultivation.

On August 16 2022, the parties entered into a "Stipulation for Settlement and Permanent Injunction; Judgment."

County moves to enforce the judgment under Code of Civil Procedure section 128 as Code Enforcement Officer Michael Diaz has discovered 150 cannabis plants on the property on May 7, 2026, in violation of the permanent injunction. County asserts Defendant violated the judgment which entitles it to recover civil penalties ($57,000), code enforcement costs ($2,876.17), and attorney's fees ($9,701). It argues that a violation of County ordinance nos. 348 and 348.4898, which prohibit commercial cannabis activity subject to two exceptions: (1) personal cannabis cultivation of 6 plans, or (2) maximum of 24 plants for qualified patients and primary caregivers. The exceptions do not apply since

Defendant had 150 plants. It contends that it is entitled to the maximum penalty of $1,000 per day violation for 57 days (August 26, 2021 [second violation] through October 21, 2021 [complaint filing date] and May 7, 2026 [third violation].) Willfulness is shown by the fact that Defendant knew about the ordinances via the injunction. It argues that its fees and costs are reasonable.

Separately, County also moves for a receiver and nominates Richardson Griswold as the receiver. It argues it is entitled to a receiver under Code of Civil Procedure section 564(b)(9), the receiver should be given a super-priority lien, and is entitled to recover its expenses, costs and fees out of the receivership estate.

In an omnibus opposition, Defendant argues County has not demonstrated that she violated the Stipulated Judgment because she was not aware of the presence of the plants. Second, she contends the $57,000 penalty violates the agreement where she paid $10,000 to resolve the issue; at most, there is only a one-day violation resulting in a $1,000 penalty. She argues that the Constitution limits excessive fines. Third, she argues that there is no evidence that she acted willfully. She challenges the declarations submitted. Fourth, she argues that the attorney's fees are inflated and not supported by evidence. Fifth, she argues the $2,876.17 costs include the $1,616 which was resolved by the settlement. Finally, she argues that the appointment of a receiver is not supported. She argues that there was no notice or opportunity to cure. She contends that there is no showing that cultivation is an ongoing threat since the plants were removed. She asserts that the financial costs of a receiver do not support appointing a receiver. In the alternative, she requests the court limit any civil penalties.

In reply to the motion to enforce, County complains that the opposition is untimely. It argues that the judgment authorizes the County to recover past and present abatement costs. It asserts that ownership of the property is sufficient. It contends that willfulness is demonstrated by the fact that Defendant signed the stipulation and was therefore aware of the County's ordinance prohibiting cannabis cultivation. It argues that attorney fees do not require itemized billing statements. For the receivership motion, it argues that the judgment allows appointment of a receiver as a remedy. It asserts that there is no lesser remedy available as County has tried a permanent injunction.

In a supplemental brief, County addresses the excessive penalty clause. It argues that under the factors listed in *Sweeney*, Defendant has shown a willful indifference based on her history of violating the ordinance; County adopted the ordinances based on specific findings of harm to the public; the penalty is comparable to other penalties; and Defendant owns the property which demonstrates financial resources to pay. It asserts that attorneys fees are recoverable pursuant to Ordinance No. 725, section 15, and supported by counsel.

<u>Analysis</u>

A. Enforce Judgment

The parties entered into a stipulated judgment. A stipulated or consent judgment is "a judgment entered by a court under the authority of, and in accordance with, the contractual agreement of the parties [citation], intended to settle their dispute fully and finally [citation].” (*Norgart v. Upjohn Co*. (1999) 21 Cal.4th 383, 400.)

Code of Civil Procedure section 128(a)(4) provides: “Every court shall have the power to do all of the following: … (4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.” Furthermore, a court may “retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc. § 664.6(a).) The stipulated judgment allows enforcement pursuant to section 664.6. (Stipulated Judgment ¶7.)

1. Request for Judicial Notice

County requests judicial notice of County Ordinance nos. 348.4898, 725, 803 and 925. The court grants judicial notice. (Evid. Code § 451.)

2. Violation of the Stipulated Judgment

The stipulated judgment provides:

> In consideration for the final settlement of the Action, the Parties agree to stipulate for a Permanent Injunction, and thereby a Judgment, in favor of County and against Sonia Magali Lima, an individual (“Settling Defendant”), including a Permanent Injunction prohibiting, restraining, and enjoining Settling Defendant … from:
>
> Operating, leasing, renting, causing, allowing, permitting, aiding, abetting, suffering, concealing, or granting the authority or permission to engage in Unlawful Commercial Cannabis Activities, including Unlawful Cannabis Cultivation, in violation of the Riverside County ordinances and State law at the property located at 25390 Spring Street, Perris, CA. 92570, within the unincorporated areas of Riverside County, and further identified as Assessor’s Parcel No. 345-050-023 (“Subject Property”), or any other property within the unincorporated area of the County of Riverside.

(Stipulated Judgment ¶1.) Additionally, pursuant to the permanent injunction, Defendant was to:

> a. Permanently cease any Unlawful Cannabis Cultivation at or from the Subject Property and any other property within the unincorporated areas of the County of Riverside,
>
> b. Remove all cannabis, cannabis plants, cannabis-related equipment and supplies, and any and all personal property related to or used in conjunction with the Unlawful Cannabis Cultivation (collectively referred to as “Personal Property” or “Inventory”) remaining at the Subject Property, and

c. Lawfully remove any construction without permit at the Subject Property as related to the Unlawful Cannabis Cultivation.

(Stipulated Judgment ¶2.)

Here, County submits the declaration of Code Enforcement Officer Michael Diaz. On May 7, 2026, Diaz and the Riverside County Sheriff's Department executed a warrant for the property during which 150 cannabis plants were removed. (Diaz Decl. ¶9.)

In opposition, Defendant acknowledges that she owns and resides on the property, but that she had no knowledge of the plants. (Lina Decl. ¶2, 14, 15.) She contends that County attempts to hold her personally liable without establishing she is directly involved. (Lina Decl. ¶16.) First, Defendant never provides an explanation for how the plants were on the property that she owns and resides on. Second, it is irrelevant. The stipulated judgment prohibits: "Operating, leasing, renting, causing, ***allowing***, ***permitting***, aiding, abetting, suffering, concealing, or ***granting*** the authority or permission to engage in Unlawful Commercial Cannabis Activities." As the officers found 150 cannabis plants, Defendant allowed, permitted, or granted the authority of others to engage in unlawful commercial cannabis activities.[1] That is a breach of the stipulated judgment.

3. Penalties

The Stipulated Judgment provides for different remedies for different breaches—breach of payment of abatement costs (¶5) and a breach of all other agreement provisions (¶6). This is not a breach of payment of abatement costs as both sides agree that Defendant paid the $10,000 required under ¶4. Thus, ¶6 applies:

> Should Settling Defendant breach any other Agreement provision, Settling Defendant shall immediately be in default of this Agreement and the County may pursue any appropriate legal remedies to enforce the Agreement. In the event of a default of the Agreement by Settling Defendant, the County may seek enforcement of this Agreement through any and all means permitted by law, including but not limited to seeking appointment of receiver and a motion for contempt of court against Settling Defendant. In the event of a default of the Agreement by Settling Defendant, the County retains the right to seek recovery of all civil penalties, Code Enforcement costs, and attorney's fees incurred and to be incurred in relation to the Action and the conditions complained of therein.

County seeks $57,000 based on $1,000 per day violation for 57 days (August 26, 2021 [second violation] through October 21, 2021 [complaint filing date] and May 7, 2026 [third violation].) Defendant contends that she is only liable for $1,000 for the third violation date. However, as stated above, as a result of a breach, County is entitled to

[1] Defendant cites to *People ex rel. Beccera v. Huber* (2019) 32 Cal.App.5th 524, 545 for the proposition that sanctions require competent evidence connecting the named defendant to the offending conduct. *Becerra* involved issues of tribal sovereignty. Defendant also cites to *County of Sacramento v. Sandison* (2009) 174 Cal.App.4th 646 regarding the evidentiary standard. *County of Sacramento* discussed the reasonableness of attorneys fees in a nuisance action. None of the cases cited by Defendant supports the propositions asserted.

recover penalties "incurred and to be incurred in relation to the Action." That allows the past violations to be recovered despite the fact that Defendant paid the $10,000 stipulated amount. At most, the $10,000 is now a credit against the full penalties.

Defendant then challenges that there is no evidence of willfulness. There is no requirement of willfulness under the Stipulated Judgment. However, Ordinance No. 725, §11(b) provides:

> "Any person, whether acting as principal, agent, employee, owner, lessor, lessee, tenant, occupant, operator, contractor or otherwise, who willfully violates the provisions of any Land Use Ordinance or any rule, regulation, order or conditions of approval issued thereunder by committing, causing, allowing, maintaining, continuing or otherwise permitting a violation of any Land Use Ordinance shall be liable for a civil Penalty not to exceed $1,000.00 for each day or portion thereof, that the violation continues to exist."

Ordinance No. 348.4898, §19.501 provides:

> Any Commercial Cannabis Activity that is not expressly provided for in both an approved conditional use permit and a valid Cannabis license issued by the State is prohibited in all zones and is hereby declared a public nuisance….

Commercial Cannabis Activity includes cannabis cultivation. (*Id*. at §19.500.) Here, Diaz states that the property does not have conditional use permit or a Cannabis license issued by the State. (Diaz Decl. ¶4.)[2]

It is undisputed that Defendant is an owner, and 150 cannabis plants were found on the property. An owner who willfully violates a county ordinance "by committing, causing, allowing, maintaining, continuing or otherwise permitting" is all that requires. While the ordinance does not define "willfully," Penal Code section 7(b)(1) defines it as "implies simply a purpose or willingness to commit the act, or make the omission referred to. It does not require any intent to violate law, to injure another, or to acquire any advantage." Defendant allowed or otherwise permitted 150 cannabis plants on the property. That is sufficient to demonstrate willfulness.

Defendant then contends that a $1,000 day penalty is excessive.[3] " 'The touchstone of the constitutional inquiry under the Excessive Fines Clause is the principle of proportionality: The amount of the forfeiture must bear some relationship to the gravity of the offense that it is designed to punish. [Citations.] ... [A] punitive forfeiture violates

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[2] Diaz's declaration is conclusory and does not provide foundation for this statement. But, Defendant did not submit actual evidentiary objections.

[3] Defendant cites to *BMW of North America, Inc. v. Gore* (1996) 517 U.S. 559 which involves punitive damages—not penalties. Defendant then refers to *Thurman v. Bashore Transit Management, Inc.* (2012) 203 Cal.App.4th 1112 (disapproved on other grounds in *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175) which involved penalties under PAGA which specifically disallows penalties if it is "unjust, arbitrary and oppressive, or confiscatory." (Labor Code §2699(e)(2).) Defendant also cites to *Dept. of Alcoholic Beverage Control v. Alcoholic Beverage Control Appeals Bd.* (2002) 99 Cal.App.4th 294, 313. Such a case does not appear to exist.

the Excessive Fines Clause if it is grossly disproportional to the gravity of a defendant's offense.' " (*City and County of San Francisco v. Sainez* (2000) 77 Cal.App.4th 1302, 1321–1322.) In determining whether the fine is disproportionate, the court looks to " '(1) the defendant's culpability; (2) the relationship between the harm and the penalty; (3) the penalties imposed in similar statutes; and (4) the defendant's ability to pay.' " (*Sweeney v. San Francisco Bay Conservation & Development Commission* (2021) 62 Cal.App.5th 1, 19.)

Here, the Defendant's culpability is demonstrated by the fact that she has violated the permanent injunction by allowing cannabis plants to be grown on her property. County adopted the ordinance in further of public safety.

Defendant contends that County has not demonstrated she has an ability to pay while County asserts that Defendant owns the subject property. However, it is Defendant's burden to show an inability to pay. (*Lent v. California Coastal Com.* (2021) 62 Cal.App.5th 812, 860-861.) As Defendant failed to provide evidence of an inability to pay, Defendant failed to demonstrate that the penalties are excessive.

4. Code Enforcement Costs/Attorney Fees

Defendant again repeats that the $10,000 payment covered these fees. As discussed with the penalties, ¶6 of the Stipulated Judgment allows recovery of past costs and fees. Thus, the prior $10,000 payment is merely a credit at this point.

Defendant also challenges the amount. For the current motion and motion to appoint receiver, County seeks $3,542 (9.2 hours x $385). (Ridge Decl. ¶18-20.) Such amount is reasonable. However, for the prior attorney fees, it seeks to recover $4,926 in legal fees and $1,233 in legal costs for a total of $6,159. (Ridge Decl. ¶17.) There was no explanation for how County spent that time. (Aguayo Decl. ¶6.) County has now submitted the declaration of Braden Holly, demonstrating the time spent in litigation. Accordingly, the fees are reasonable.

As such, the court grants this motion. The fees shall be paid no later than 90 days from the date of this order.

B. Appointment of Receiver

The appointment of a receiver is a drastic remedy to be utilized only in "exceptional cases." As such, a receiver should not be appointed unless absolutely essential and because no other remedy will serve its purpose. (*Medipro Medical Staffing, LLC v. Certified Nursing Registry, Inc.* (2021) 60 Cal.App.5th 622, 628; *City & County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, 744). A party who seeks appointment of a receiver of certain property, under Code of Civil Procedure section 564(b), has the burden to establish by a preponderance of the evidence that plaintiff has a joint interest with defendant in the property, that the property is in danger of being lost, removed or materially injured and that the party seeking a receiver has a right to possession is probable. (*Alhambra Shumway Mines, Inc. v. Alhambra Gold Mine Corp*. (1953) 116 Cal.App.2d 869, 873). A receiver may only be appointed pursuant to the statutes that permit a receivership. (*Marsch v. Williams* (1994) 23 Cal.App.4th 238, 246-248.)

It is true that ¶6 of the Stipulated Judgment permits the appointment of a receiver to seek enforcement of this Agreement. However, there is no evidence of an ongoing issue. For one, County is only seeking penalties related to one day of the third violation. That is because Diaz confirms that County removed the cannabis plants. (Diaz Decl. ¶9.) Because the plants have been removed, and County has not shown that Defendant is continuing to grow cannabis currently, a receiver appears to be excessive currently. Other remedies exist, such as contempt procedures, to ensure that Defendant complies, rather than a drastic remedy of a receiver. The court denies this motion.

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2505757	LIZARRAGA vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION, SET ONE

Tentative Ruling:

Matter rescheduled for October 28, 2026 at 8:30 a.m. in Department 2.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2505757	LIZARRAGA vs COUNTY OF RIVERSIDE	MOTION TO COMPEL FURTHER RESPONSES FROM PLAINTIFF JAIME LIZARRAGA JR. TO FORM INTERROGATORIES, SET ONE, AND PLAINTIFF'S SUPPLEMENTAL RESPONSES

Tentative Ruling:

Matter rescheduled for October 28, 2026 at 8:30 a.m. in Department 2.